

Court No. - 21

Case :- WRIT - C No. - 10569 of 2022

Petitioner :- Divya Bharti

Respondent :- Dakshinanchal Viddyt Vitran Nigam Limited
And 2 Others

Counsel for Petitioner :- Bipin Kumar, Mata Achal Mishra

Counsel for Respondent :- Madan Mohan Chaurasisa

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Dinesh Pathak, J.

The instant writ petition is directed against a report submitted by respondent no.2 to the District Magistrate in response to a complaint filed by the petitioner before him. The complaint was in respect of the stand taken by the respondent-Corporation in denying electricity connection to the petitioner's shop on account of there being family dispute relating to the property between family members. The report states that as and when documents relating to ownership of the premises and consent letter is filed by the petitioner, the electricity connection will be released.

Under Clause 4.4 of the U.P. Electricity Code, 2005, in such a situation, the requirement is that the person applying for electricity connection has to enclose copy of the order of the Court, in case of litigation regarding ownership of the premises.

The petitioner in his representation has admitted that he has instituted Original Suit No. 479 of 2019 against the co-owner which is said to be pending, however, no order of the Court for grant of electricity connection in favour of the petitioner or declaring him as owner of the premises in respect whereof electricity connection was required, was admittedly filed, therefore, we find no error in the stand taken by the respondent-Corporation while submitting the impugned report.

Accordingly, the writ petition is **disposed of** leaving it open to the petitioner to submit documents as required under Clause 4.4 of the Electricity Supply Code, 2005 and whereupon the respondent-Corporation shall proceed to process the application in accordance with law.

Order Date:- 28.4.2022

CS/-

(Dinesh Pathak, J.) (Manoj Kumar Gupta, J.)